

UPSC GS-II POLITY

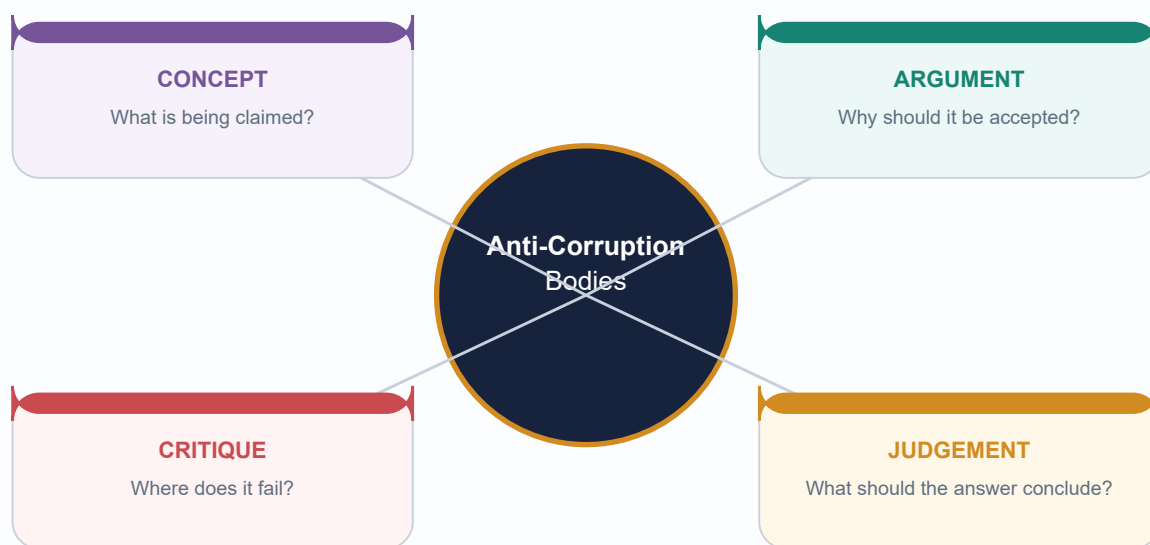
CVC & CBI — Anti-Corruption Bodies

Integrated Basic + Advanced Course

10 deep-learning modules | Vigilance, Investigation & Anti-Corruption Architecture

Institutional maps, appointment/removal flows, comparisons, UPSC traps and Mains frameworks

Prepared from the verified Polity knowledge base (M. Laxmikant + official updates)



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

1. CVC — Origin: From Executive Resolution to Statutory Body

GS-II Polity - Statutory Bodies

NEWS TRIGGER

Every discussion of India's anti-corruption architecture traces back to the Santhanam Committee's 1964 recommendation — making CVC's evolutionary origin a recurring conceptual anchor.

INTRO & ORIGIN

The Central Vigilance Commission is the apex integrity/anti-corruption body of the Centre. It was established in **1964** by an **executive resolution**, on the recommendation of the **Santhanam Committee on Prevention of Corruption (1962-64)**.

CVC was originally neither constitutional nor statutory — it acquired statutory status only in 2003, following the Supreme Court's directions in the Vineet Narain (Jain Hawala) case, 1997.

TIMELINE

1962-64 — Santhanam Committee on Prevention of Corruption recommends a central vigilance body.

1964 — CVC established by an executive resolution (neither constitutional nor statutory).

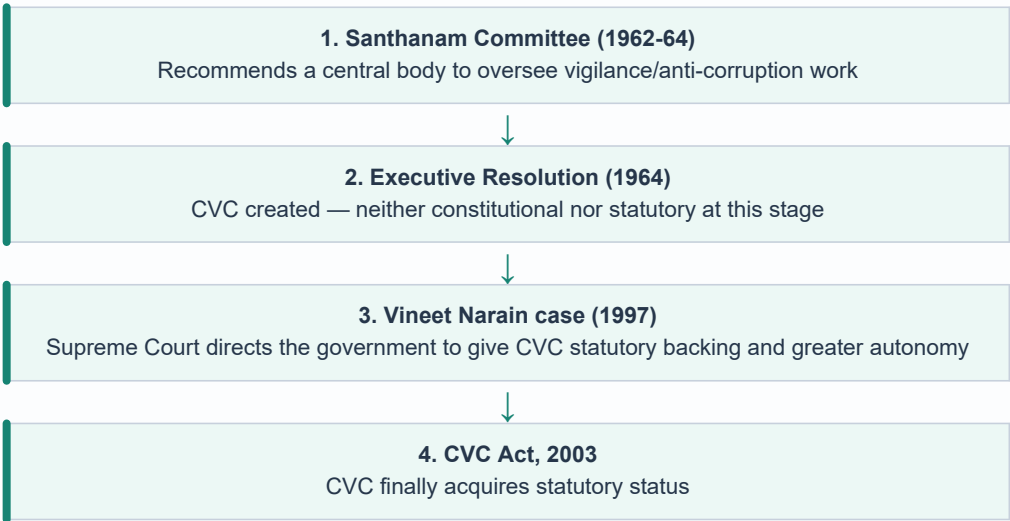
1997 — Vineet Narain / Jain Hawala case — Supreme Court directs statutory backing and CBI insulation.

2003 — CVC Act, 2003 gives the Commission statutory status.

KEY DATA

Aspect	Detail
Established	1964, by executive resolution
Recommended by	Santhanam Committee on Prevention of Corruption (1962-64)
Statutory status	Given by the CVC Act, 2003
Judicial trigger for statutory status	Vineet Narain / Jain Hawala case, 1997

CVC'S JOURNEY TO STATUTORY STATUS



STATIC THEORY

- CVC is a rare example of an institution that existed for nearly four decades (1964-2003) without any statutory or constitutional foundation — purely on executive resolution.
- The Vineet Narain case is a landmark of judicial activism compelling the Executive and Legislature to institutionalise an anti-corruption body's independence.
- The Santhanam Committee's recommendations also indirectly shaped the CBI's own establishment (1963) — both bodies share a common intellectual origin.

MEMORY HOOK

Santhanam Committee -> 1964 Executive Resolution -> 1997 Vineet Narain -> 2003 CVC Act

MUST-KNOW FACTS

1. CVC was established in 1964 by an executive resolution, on the Santhanam Committee's recommendation.
2. It was originally neither a constitutional nor a statutory body.
3. It received statutory status through the CVC Act, 2003.
4. The Vineet Narain (Jain Hawala) case, 1997 was the judicial trigger for this statutory backing.

UPSC TRAPS

WRONG: CVC has been a statutory body since its inception in 1964.

CORRECT: It was originally neither constitutional nor statutory; it gained statutory status only via the CVC Act, 2003.

MAINS ANGLE

Framework: Intro — trace CVC's origin from the Santhanam Committee to the CVC Act, 2003. Body — highlight the Vineet Narain case as a rare instance of judicial direction institutionalising an anti-corruption body's legal status. Conclusion — argue that statutory status alone does not guarantee independence unless matched by adequate powers (see Module 3).

STUDY LINK

Polity -> Judicial activism (PIL era) -> Vineet Narain case -> Institutional reform

HIGH

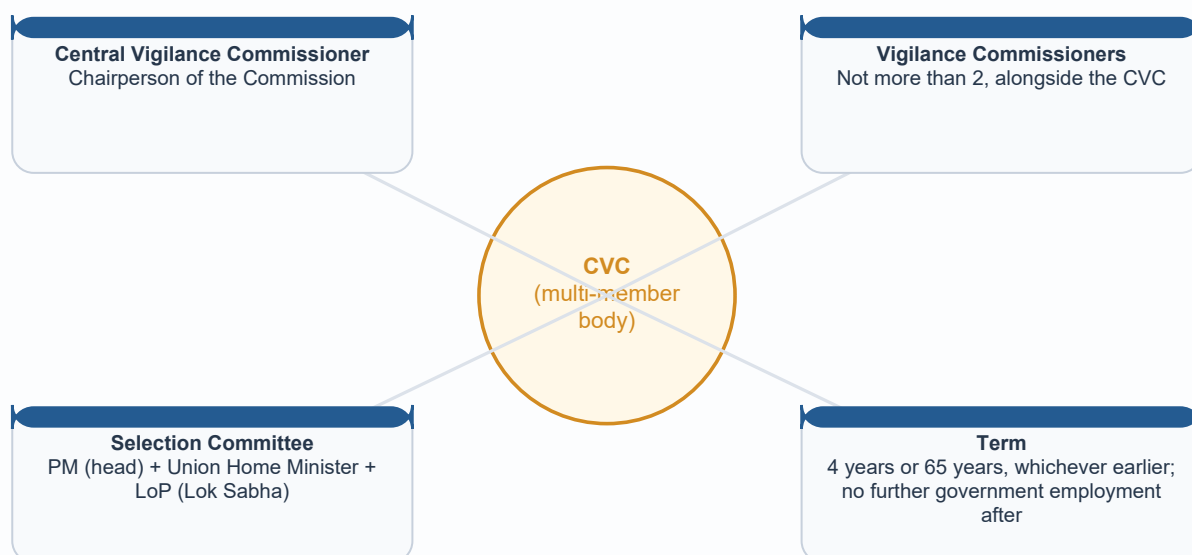
2. CVC — Composition, Appointment & Salary Parity

GS-II Polity -
Institutional
Structure

NEWS TRIGGER

CVC's salary parity with the UPSC Chairman/Members is often tested alongside similar parities for the CEC and CAG — a comparative-institutions favourite.

CVC — COMPOSITION & SELECTION



CVC — MAXIMUM COMMISSION STRENGTH

Central Vigilance Commissioner

1

Vigilance Commissioners (max)

2

Maximum total strength = 3, as fixed by the CVC Act, 2003.

KEY DATA

Aspect	Detail
Appointed by	President, on a 3-member committee: PM (head) + Home Minister + LoP (LS)
Removed by	President (proved misbehaviour/incapacity -> Supreme Court inquiry)
Salary parity — CVC	Equal to the UPSC Chairman
Salary parity — Vigilance Commissioner	Equal to a UPSC Member
Post-tenure restriction	No further government employment after completing the term

STATIC THEORY

- CVC's 3-member selection committee (PM, Home Minister, LoP-LS) differs from CBI Director's panel (PM, LoP-LS, CJI/SC judge) — the Home Minister features in CVC's panel, the CJI/judge features in CBI's.
- Salary parity with UPSC functionaries is a recurring design pattern for high constitutional/statutory offices, meant to signal equivalent institutional stature.
- The bar on further government employment post-tenure is meant to prevent the Commissioner from seeking post-retirement favour from the government during their term.

MEMORY HOOK

CVC panel = PM + Home Minister + LoP (LS) | Multi-member: CVC + up to 2 VCs | Term 4 yrs/65

MUST-KNOW FACTS

1. CVC is a multi-member body: Central Vigilance Commissioner (chairperson) + not more than 2 Vigilance Commissioners.
2. Appointed by the President on a 3-member committee: PM (head), Union Home Minister, LoP (Lok Sabha).
3. Term: 4 years or 65 years, whichever is earlier; no further government employment thereafter.
4. Salary parity: CVC with the UPSC Chairman; Vigilance Commissioner with a UPSC Member.

UPSC TRAPS

WRONG: CVC is a single-member body.

CORRECT: It is multi-member: CVC (chairperson) + not more than 2 Vigilance Commissioners.

WRONG: CVC's term is 5 years, like many other commissions.

CORRECT: It is 4 years or 65 years, whichever is earlier.

MAINS ANGLE

Framework: Intro — describe CVC's multi-member structure and its 3-member selection committee. Body — compare with CBI Director's differently-composed panel (Module 5) to show how even closely related anti-corruption offices use distinct appointment safeguards. Conclusion — assess whether Home Minister's presence on CVC's panel (vs CJI/judge on CBI's) reflects a weaker judicial check for CVC appointments.

STUDY LINK

Polity -> CBI Director selection panel ->

Comparative appointment-committee design

HIGH

3. CVC — Powers, Functions & the Limits of Superintendence over CBI

GS-II Polity -
Powers &
Functions

NEWS TRIGGER

The precise scope of CVC's 'superintendence over the CBI' — limited to Prevention of Corruption Act offences — is one of the most consistently tested UPSC traps in this entire topic area.

CVC — CORE FUNCTIONS

Apex Vigilance & Whistle-Blower Authority

Superintendence (Limited) Over CBI, ONLY for Prevention of Corruption Act, 1988 offences	Corruption Inquiries Against All-India Services & Group-A central officers
Whistle-Blower Authority Under the PIDPI Resolution (2004) & Whistle Blowers Protection Act, 2014	Selection Panels Chairs committee recommending ED Director and CBI officers (SP-and-above, except Director)

KEY DATA

Function	Scope / Limit
Superintendence over CBI	ONLY for Prevention of Corruption Act, 1988 offences — NOT all CBI work
Corruption complaints	Against All-India Services and Group-A officers of the Central Government
Whistle-blower role	Statutory authority under the Whistle Blowers Protection Act, 2014
Advice to government	Advisory only — government must record reasons if it disagrees
Reporting	Annual report to the President, laid before Parliament

STATIC THEORY

- CVC's superintendence over CBI is deliberately narrow — confined to Prevention of Corruption Act offences — leaving the rest of CBI's non-corruption caseload (economic offences, other crimes) under the Central Government's administrative control.
- This narrow superintendence is a frequent source of confusion; many assume CVC 'controls' the CBI generally, which is incorrect.
- CVC's advice remains advisory — the government can differ, but must record its reasons, a soft accountability mechanism rather than a binding constraint.

MEMORY HOOK

CVC superintends CBI ONLY for PC Act, 1988 offences — NOT all of CBI's work

MUST-KNOW FACTS

1. CVC has civil-court powers and exercises superintendence over the CBI, but only for Prevention of Corruption Act, 1988 offences.
2. It inquires into corruption complaints against All-India Services and Group-A central officers.
3. It is the whistle-blower authority under the PIDPI Resolution (2004) and the Whistle Blowers Protection Act, 2014.
4. It chairs the committee recommending the ED Director and CBI officers of SP rank and above (except the Director).

UPSC TRAPS

WRONG: CVC has complete control over all of the CBI's functioning.

CORRECT: Its superintendence over CBI is limited strictly to Prevention of Corruption Act, 1988 offences; the rest falls under the Central Government.

WRONG: CVC's advice to the government is legally binding.

CORRECT: CVC's advice is advisory; the government must record reasons if it disagrees, but is not bound to follow it.

MAINS ANGLE

Framework: Intro — clarify the precise, limited scope of CVC's superintendence over the CBI. Body — analyse how this narrow scope, combined with advisory-only powers over government, limits CVC's practical ability to ensure CBI accountability. Conclusion — evaluate reform proposals for expanding CVC's binding authority within its vigilance mandate.

STUDY LINK

Polity -> Prevention of Corruption Act, 1988 -> CVC-CBI jurisdictional overlap

HIGH

4. CBI — Origin & Legal Basis: Not Even Statutory

GS-II Polity -
Statutory Bodies

NEWS TRIGGER

Demands for a 'separate CBI Act' recur precisely because CBI still operates on a colonial-era 1946 police-establishment law rather than a dedicated modern statute.

INTRO & ORIGIN

The Central Bureau of Investigation was set up in **1963** by a **Home Ministry resolution**, also recommended by the **Santhanam Committee**. It is the Centre's main investigating agency and assists the CVC and Lokpal.

CBI is not even a statutory body — it derives its powers from the Delhi Special Police Establishment (DSPE) Act, 1946, a law that predates independence and was never replaced with a dedicated CBI statute.

TIMELINE

1946 — Delhi Special Police Establishment (DSPE) Act enacted — CBI's continuing legal basis.

1962-64 — Santhanam Committee recommends a central investigating agency.

1963 — CBI set up by a Home Ministry resolution.

2008 (context) — NIA created post-Mumbai attacks, carving out a separate terror-investigation mandate distinct from CBI's corruption/economic-crime focus.

KEY DATA

Aspect	Detail
Established	1963, by a Home Ministry resolution
Legal basis	Delhi Special Police Establishment (DSPE) Act, 1946 — NOT a dedicated CBI statute
Constitutional/statutory status	Neither — CBI is not even a statutory body
Role	Centre's main investigating agency; assists CVC and Lokpal

STATIC THEORY

- CBI's absence of a dedicated statute is arguably the single biggest structural vulnerability in India's anti-corruption architecture — its powers, jurisdiction and accountability all trace to a 1946 police-establishment law never designed for a national investigating agency.
- CVC (statutory since 2003) and CBI (not statutory at all) sit at two different points on the institutionalisation spectrum, despite working together closely.
- CBI vs NIA is a key distinction: NIA (created after the 2008 Mumbai attacks) handles terrorism; CBI handles corruption, economic and organised crime (non-terror).

MEMORY HOOK

CBI = 1963 Home Ministry resolution, runs on the 1946 DSPE Act — NOT even statutory

MUST-KNOW FACTS

1. CBI was set up in 1963 by a Home Ministry resolution.
2. It derives its powers from the Delhi Special Police Establishment (DSPE) Act, 1946.
3. CBI is not a statutory body at all — unlike CVC, which is statutory since 2003.
4. CBI handles corruption, economic and organised crime; NIA (post-2008) handles terrorism.

UPSC TRAPS

WRONG: CBI is a statutory body established by its own Act of Parliament.

CORRECT: CBI has no dedicated statute — it operates under the Delhi Special Police Establishment Act, 1946.

WRONG: CBI and NIA have overlapping mandates for the same categories of crime.

CORRECT: NIA focuses on terrorism; CBI focuses on corruption, economic and organised (non-terror) crime.

MAINS ANGLE

"Multiplicity of anti-corruption bodies (CVC, CBI, Lokpal, ED) — synergy or turf war?" **Framework:** Intro — highlight CBI's unusual legal foundation (a 1946 police Act, no dedicated statute). Body — connect this legal fragility to recurring independence and jurisdiction disputes (see Module 6). Conclusion — evaluate the long-pending demand for a separate CBI Act as a foundational, not cosmetic, reform.

STUDY LINK

Polity → NIA vs CBI mandate → Comparative investigating-agency design

HIGH

5. CBI Director — Appointment, Tenure & the 2021 Extension Controversy

GS-II Polity -
Independence
Safeguards

NEWS TRIGGER

The DSPE (Amendment) Act, 2021 enabling annual extensions of the CBI Director's tenure (up to 5 years total) has been repeatedly criticised as a tool for enabling government influence over the agency's leadership.

KEY DATA

Aspect	Detail
Appointing committee	PM (chair), LoP (Lok Sabha), CJI or an SC judge nominated by the CJI
Base tenure	2 years (security of tenure under the CVC Act, 2003)
No LoP substitute	Leader of the single-largest opposition party (DSPE Amendment, 2014)
Maximum extended tenure	Up to 5 years, via 3 one-year extensions (DSPE Amendment, 2021)

CBI DIRECTOR — APPOINTMENT & TENURE EVOLUTION

STATIC THEORY

- The CBI Director's selection panel includes the CJI/an SC judge — a judicial check absent from CVC's own selection panel (which has the Home Minister instead).
- The base 2-year tenure was meant to insulate the Director from short-term political pressure, following earlier controversies over premature removals.
- The 2021 Amendment's annual-extension mechanism is criticised precisely because repeated, government-controlled renewal decisions can recreate the very political leverage the 2-year guarantee was meant to prevent.

MEMORY HOOK

CBI Director panel = PM + LoP(LS) + CJI/SC judge | Tenure: 2 yrs, extendable annually to 5 yrs (2021)

MUST-KNOW FACTS

1. CBI Director is appointed by the Central Government on a 3-member committee: PM (chair), LoP (Lok Sabha), CJI or an SC judge nominated by the CJI.
2. Tenure has 2-year security under the CVC Act, 2003.
3. If there is no recognised LoP, the leader of the single-largest opposition party sits on the committee (DSPE Amendment, 2014).
4. The DSPE (Amendment) Act, 2021 allows the 2-year term to be extended annually up to a total of 5 years.

UPSC TRAPS

WRONG: The CBI Director selection panel is identical to the CVC's selection panel.

CORRECT: CBI's panel has the CJI/an SC judge; CVC's panel has the Union Home Minister instead.

WRONG: The CBI Director's 2-year tenure is absolute and cannot be extended.

CORRECT: The DSPE (Amendment) Act, 2021 allows annual extensions up to a total of 5 years.

MAINS ANGLE

Framework: Intro — outline the CBI Director's appointment safeguards (judicial presence on the panel, 2-year tenure). Body — critically assess the 2021 Amendment's extension mechanism as a potential dilution of that safeguard, since repeated renewals depend on government discretion. Conclusion — recommend a genuinely fixed, non-extendable tenure to preserve independence.

STUDY LINK

Polity -> Election Commissioner
tenure-security debates -> Comparative
independence design

HIGH

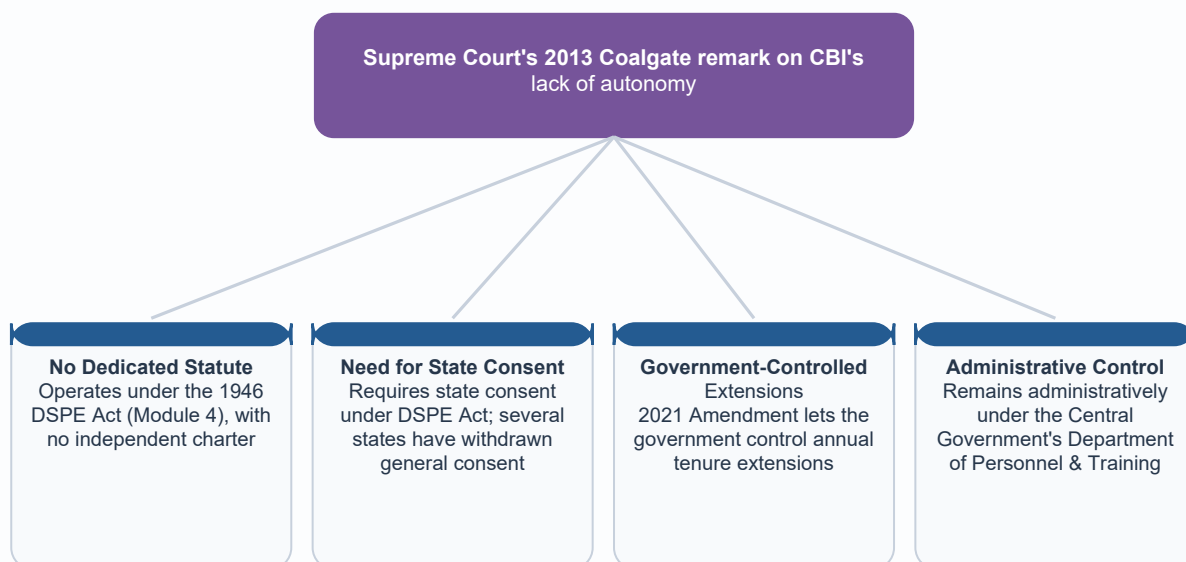
6. CBI Independence — 'Caged Parrot' & the Withdrawal of General Consent

GS-II Polity -
Institutional
Independence

NEWS TRIGGER

Several states have withdrawn or altered their standing ('general') consent for CBI to investigate cases within their territory, requiring case-specific consent instead — the exact roster of such states changes over time and should not be memorised as a fixed, undated list.

WHY IS THE CBI CALLED A 'CAGED PARROT'?



KEY DATA

Independence Concern	Structural Cause
'Caged parrot' criticism	Supreme Court's 2013 remark during the Coalgate (coal-block allocation) hearings
State consent requirement	DSPE Act, 1946 requires state consent for CBI to investigate within a state — several states have withdrawn general consent, requiring case-specific consent
Tenure extension control	DSPE (Amendment) Act, 2021 gives the government discretion over annual extensions
No separate statute	Absence of a dedicated CBI Act leaves its charter, powers and accountability under-defined

STATIC THEORY

- The 'caged parrot' remark (Supreme Court, 2013, Coalgate hearings) remains the single most quoted judicial critique of CBI's structural dependence on the Executive.
- Withdrawal of general consent forces CBI to seek case-specific permission from a state government before investigating within that state — a significant practical constraint, especially in politically sensitive cases; the specific list of withdrawing states shifts over time.
- Demands for a separate, comprehensive CBI Act (raised by the 2nd Administrative Reforms Commission and various Parliamentary panels) aim to address the root legal fragility identified in Module 4.

MEMORY HOOK

'Caged Parrot' (SC, 2013, Coalgate) = state-consent dependence + government-controlled tenure + no dedicated Act

MUST-KNOW FACTS

1. The Supreme Court's 2013 'caged parrot' remark (Coalgate case) is the landmark judicial critique of CBI's autonomy.
2. Under the DSPE Act, CBI needs state consent to investigate within a state; several states have withdrawn 'general consent,' requiring case-specific consent instead.
3. The 2nd ARC and various Parliamentary panels have demanded a separate, statutory CBI Act.

UPSC TRAPS

WRONG: CBI can investigate any case anywhere in India without needing state permission.

CORRECT: Under the DSPE Act, it needs state consent; many states have withdrawn general consent, requiring case-specific consent.

WRONG: The 'caged parrot' remark was made by a Parliamentary committee.

CORRECT: It was a Supreme Court observation, made during the 2013 Coalgate (coal-block allocation) hearings.

MAINS ANGLE

"The CBI is a caged parrot." **Framework:** Intro — introduce the Supreme Court's 2013 remark as the anchor for CBI's autonomy debate. Body — structurally analyse the causes: no dedicated statute, state-consent dependence, government-controlled tenure extensions. Conclusion — recommend a separate CBI Act, clearer consent protocols, and depoliticised tenure security as structural reforms.

STUDY LINK

Polity → Cooperative federalism & police as a State subject → CBI-state consent framework

HIGH**7. CVC vs CBI vs Lokpal — Jurisdictional Comparison**

GS-II Polity -
Comparative
Institutions

NEWS TRIGGER

UPSC frequently frames 'multiplicity of anti-corruption bodies' as a direct Mains theme — testing whether aspirants can distinguish CVC, CBI and Lokpal along status, function and enforcement lines.

HOW THE ANTI-CORRUPTION BODIES RELATE**India's Anti-Corruption Ecosystem**

CVC Oversight & whistle-blower authority; recommends CBI SP-rank+ officers and the ED Director	CBI Investigates; assists CVC and Lokpal; not a statutory body itself
Lokpal (2013 Act) Statutory ombudsman; post-2013, CBI officers (SP-and-above except Director) also go through CVC's recommendation	ED (PMLA) Separate money-laundering investigation track (Module 8)

KEY DATA

Aspect	CVC	CBI	Lokpal (for context)
Legal status	Statutory (CVC Act, 2003)	Not even statutory (DSPE Act, 1946)	Statutory (Lokpal & Lokayuktas Act, 2013)
Core role	Vigilance oversight & whistle-blower authority	Investigating agency (corruption, economic, organised crime)	Inquiry/prosecution sanction for corruption by public servants
Power over the other	Superintendence over CBI, ONLY for PC Act offences	Assists CVC and Lokpal in investigations	Can direct CBI/Lokpal's own inquiry wing
Enforcement nature	Advisory (govt may differ, recording reasons)	Investigative + prosecutorial (via courts)	Quasi-judicial inquiry/prosecution sanction

STATIC THEORY

- CVC, CBI and Lokpal occupy overlapping but distinct roles — CVC oversees/advises, CBI investigates, Lokpal inquires and can direct/sanction prosecution against public servants including, in specified matters, the Prime Minister.
- Since the Lokpal Act, 2013, CVC's role in recommending CBI officers (SP-and-above, except the Director) links CVC procedurally into CBI leadership appointments below Director level.
- This layered, overlapping design is precisely what generates the recurring Mains theme of 'synergy or turf war' among anti-corruption bodies.

MEMORY HOOK

CVC = oversees/advises | CBI = investigates | Lokpal = inquires & can sanction prosecution

MUST-KNOW FACTS

1. CVC (2003) is statutory; CBI is not statutory at all; Lokpal (2013) is statutory.
2. CVC's superintendence over CBI is limited to Prevention of Corruption Act offences.
3. Post-Lokpal Act 2013, CVC recommends CBI officers of SP rank and above (except the Director).
4. CBI assists both CVC and Lokpal in investigations.

UPSC TRAPS

WRONG: CVC, CBI and Lokpal all have the same legal status (statutory).

CORRECT: CVC and Lokpal are statutory; CBI is not even a statutory body.

MAINS ANGLE

"Multiplicity of anti-corruption bodies (CVC, CBI, Lokpal, ED) — synergy or turf war?" **Framework:** Intro — map each body's distinct legal status and functional role. Body — analyse overlaps (CVC-CBI officer recommendations, CBI assisting Lokpal) as designed coordination points, while also noting jurisdiction-based friction risks. Conclusion — argue for a clearer statutory demarcation, starting with a dedicated CBI Act, to reduce turf ambiguity.

STUDY LINK

Polity -> Lokpal & Lokayuktas (dedicated topic) -> Comparative anti-corruption architecture

HIGH

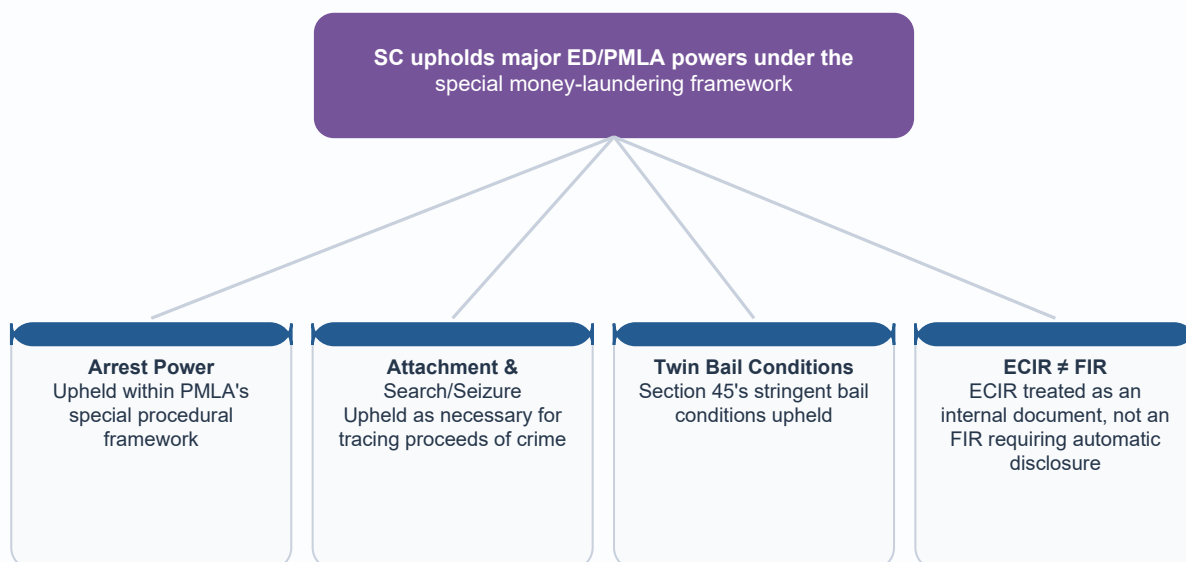
8. PMLA & the Enforcement Directorate (ED) — Closing the Gap

GS-II / GS-III
Polity - Anti-Money-Laundering Framework

NEWS TRIGGER

The Supreme Court's 2022 ruling in *Vijay Madanlal Choudhary v. Union of India* upheld sweeping ED powers under the PMLA, making the judgment a standing reference point for every ED-related current-affairs debate since.

VIJAY MADANLAL CHOUDHARY (2022) — WHAT THE SUPREME COURT UPHELD



KEY DATA

PMLA/ED Area	UPSC Takeaway
Legal basis	Prevention of Money Laundering Act, 2002 — targets laundering of proceeds of crime
ED's powers	Investigate, attach property, search, seize and arrest under the Act
Attachment	Property linked to proceeds of crime can be provisionally attached, subject to statutory process
Bail	Twin conditions under Section 45 make bail more stringent than ordinary criminal law
ECIR status	Treated by the Supreme Court as an internal ED document, not equivalent to an FIR for automatic supply

STATIC THEORY

- PMLA, 2002 is a special law targeting the laundering of proceeds of crime, operating alongside — not instead of — the predicate criminal offence investigation.
- ED is not the CBI; PMLA is a distinct, special anti-money-laundering procedure with its own arrest, attachment and bail rules, which is why the two agencies are often confused but must be kept analytically separate.
- The 2022 Vijay Madanlal Choudhary judgment is the key case law anchor: it upheld ED's core enforcement powers while treating due-process concerns (like ECIR disclosure) as a separate, still-debated issue.
- ED's expanding role creates a recurring Mains tension: anti-money-laundering effectiveness versus civil liberties and federal-misuse concerns (raised especially regarding opposition-ruled states).

MEMORY HOOK

PMLA 2002 -> ED powers (arrest/attach/search/seize) upheld in Vijay Madanlal Choudhary (2022); ECIR ≠ FIR

MUST-KNOW FACTS

1. PMLA, 2002 targets laundering of proceeds of crime; ED investigates, attaches, searches, seizes and arrests under the Act.
2. In *Vijay Madanlal Choudhary v. Union of India* (2022), the Supreme Court upheld major ED/PMLA powers.
3. The Court treated the ECIR as an internal ED document, not equivalent to an FIR for automatic supply.
4. Section 45's twin bail conditions make bail more stringent under PMLA than under ordinary criminal law.

UPSC TRAPS

WRONG: ED is simply another name for the CBI's economic-offences wing.

CORRECT: ED is a distinct agency operating under the special PMLA, 2002 framework, with its own arrest/attachment/bail rules.

WRONG: The Supreme Court treated the ECIR exactly like an FIR, requiring automatic supply to the accused.

CORRECT: The Court held the ECIR is an internal ED document, not equivalent to an FIR for automatic disclosure.

MAINS ANGLE

Framework: Intro — introduce PMLA/ED as a distinct anti-money-laundering track alongside CVC-CBI-Lokpal. Body — analyse the *Vijay Madanlal Choudhary* (2022) judgment's balance between enforcement effectiveness (upholding arrest/attachment/search powers, twin bail conditions) and due-process concerns (ECIR disclosure, federal-misuse allegations). Conclusion — argue for procedural safeguards that preserve ED's enforcement capacity while addressing transparency and federalism concerns.

STUDY LINK

Polity -> Right to Privacy/liberty (Art. 21) -> ED enforcement vs due process

HIGH**9. Reforms — Towards a Statutory Charter for the CBI**

GS-II Polity -
Institutional
Reform

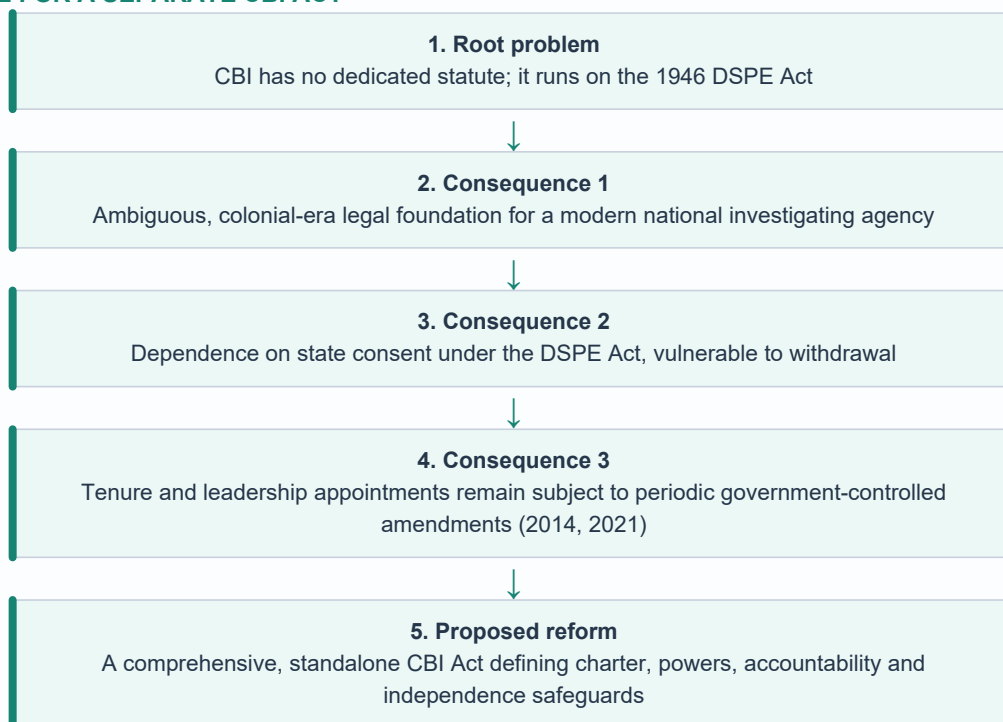
NEWS TRIGGER

The demand for a dedicated CBI Act, raised repeatedly by the 2nd Administrative Reforms Commission and Parliamentary panels, remains unresolved — keeping institutional reform of the CBI a live governance debate.

KEY DATA

Reform Proposal	Rationale
Dedicated CBI Act	Replace the 1946 DSPE Act with a modern, purpose-built statute (2nd ARC recommendation)
Clearer consent framework	Reduce disruption caused by ad hoc withdrawal of state consent
Fixed, non-extendable tenure	Prevent government leverage through discretionary annual extensions
Judicial presence in appointments	Strengthen the existing CJI/SC-judge role in CBI Director selection

THE CASE FOR A SEPARATE CBI ACT



STATIC THEORY

- Institutional reform proposals for CBI consistently converge on one root fix: replace the 1946 DSPE Act foundation with a dedicated modern statute.
- Reforms for CVC tend to focus on expanding its narrow superintendence and enforcement power, rather than its legal status (already statutory since 2003).
- This module deliberately consolidates reform proposals already discussed in Modules 4-6, rather than introducing new unverified claims.

MEMORY HOOK

2nd ARC + Parliamentary panels: CBI needs its OWN Act, not the 1946 DSPE Act

MUST-KNOW FACTS

1. The 2nd Administrative Reforms Commission has recommended a separate, statutory charter for the CBI.
2. Parliamentary panels have repeatedly echoed the demand for a dedicated CBI Act.
3. Reform proposals target CBI's legal foundation, consent dependence, and tenure-extension mechanism.

UPSC TRAPS

WRONG: A separate CBI Act has already been enacted by Parliament.

CORRECT: This remains a pending demand; CBI still operates under the 1946 DSPE Act.

MAINS ANGLE

Framework: Intro — state the 2nd ARC's core recommendation for a dedicated CBI Act. Body — connect each reform proposal (statute, consent clarity, fixed tenure, judicial presence) to the specific structural weakness it addresses (Modules 4-6). Conclusion — argue that legal-foundation reform is the precondition for any other independence-strengthening measure to be durable.

STUDY LINK

Polity -> 2nd Administrative Reforms Commission -> Institutional-reform recommendations

HIGH

10. Verified CA/PYQ Anchors & Mains Practice Frameworks

GS-II Polity -
Revision &
Answer Writing

NEWS TRIGGER

This closing module consolidates every verified CA anchor from the module set — the 'caged parrot' remark, general-consent withdrawal, the 2021 tenure amendments, and the Vijay Madanlal Choudhary judgment — into one revision and answer-writing unit.

STATIC THEORY

- Revision anchor 1: CVC (statutory since 2003) and CBI (never statutory, runs on the 1946 DSPE Act) sit at very different points on the institutionalisation spectrum.
- Revision anchor 2: CVC's superintendence over CBI is limited strictly to Prevention of Corruption Act offences.
- Revision anchor 3: CBI Director's appointment panel includes the CJI/an SC judge; tenure is 2 years, extendable annually to a maximum of 5 years (2021 Amendment).
- Revision anchor 4: the 'caged parrot' remark (SC, 2013, Coalgate) anchors the independence debate; general-consent withdrawal by some states is an evolving, undated-count issue.
- Revision anchor 5: PMLA/ED (Vijay Madanlal Choudhary, 2022) is a distinct, judicially-tested anti-money-laundering track, separate from CBI/CVC/Lokpal.

MEMORY HOOK

CVC statutory (2003) | CBI not statutory (1946 DSPE Act) | 'Caged Parrot' 2013 | PMLA-ED = Vijay Madanlal 2022

MUST-KNOW FACTS

1. CVC is statutory (CVC Act, 2003); CBI is not a statutory body (operates under the DSPE Act, 1946).
2. CVC's superintendence over CBI is limited to Prevention of Corruption Act, 1988 offences.
3. CBI Director's tenure can be extended annually up to a maximum of 5 years under the DSPE (Amendment) Act, 2021.
4. The Supreme Court's 2022 Vijay Madanlal Choudhary judgment upheld key ED powers under the PMLA.

UPSC TRAPS

WRONG: CVC and CBI have the same legal status and the same selection-committee composition.

CORRECT: CVC is statutory with a PM-Home Minister-LoP panel; CBI is not statutory and its Director's panel includes the CJI/an SC judge instead of the Home Minister.

WRONG: ED's powers under PMLA were struck down as unconstitutional in 2022.

CORRECT: The Supreme Court in Vijay Madanlal Choudhary (2022) upheld major ED/PMLA powers, including arrest, attachment, and search/seizure.

CVC/CBI — CONCEPT LINKS ACROSS THE SYLLABUS

Core Concept	Linked Concept	Why It Matters
CVC statutory status (2003)	Vineet Narain case, 1997	Tests understanding of judicially-triggered institutional reform
CBI's DSPE Act foundation	2nd ARC recommendations	Links legal fragility to concrete, cited reform proposals
CBI Director tenure (2021)	CIC/NHRC tenure changes (2019)	Recurring theme: executive control over statutory-office tenure
State consent withdrawal	Cooperative federalism / police as State subject	Tests Centre-State dynamics in law-and-order administration
PMLA/ED (Vijay Madanlal, 2022)	Right to liberty (Art. 21) & due process	Balances enforcement power against civil-liberties safeguards

MAINS ANGLE

Consolidated Mains Framework — Intro: map India's anti-corruption/vigilance architecture (CVC, CBI, Lokpal, ED). Body: (a) legal foundations — statutory (CVC, Lokpal) vs non-statutory (CBI); (b) independence stress points — tenure control, state-consent withdrawal, 'caged parrot' critique; (c) the PMLA-ED track as a judicially-tested parallel enforcement mechanism. Conclusion: argue that a dedicated CBI Act, combined with depoliticised tenure security across all these bodies, is the most foundational reform for India's anti-corruption ecosystem.

STUDY LINK

Polity -> Lokpal & Lokayuktas ->
Comprehensive anti-corruption institutional design

End of Register Notes — UPSC Agent / Copilot CLI